

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CRAVON BOWDEN,

Index No.:

Plaintiff,

SUMMONS

vs.

CITY OF NEW YORK, POLICE
OFFICER HUTCHINSON and
POLICE OFFICER JOHN DOE #1,

Defendants.

-----X

SUMMONS

Plaintiff designates Kings County as the place of trial. The basis of venue is the Plaintiff's residence and the location where the incident occurred. Plaintiff CRAVON BOWDEN resides at 649 Georgia Avenue, Brooklyn, New York 11207.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your Answer; or, if the Verified Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney within 20 days after the service of this Summons with Notice, exclusive of this day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
August 28, 2015

Yours, etc.,

Tumelty & Spier, LLP
Attorneys for Plaintiff
160 Broadway-Suite 708
New York, New York 10038
(212) 566-4681

Defendants' addresses:

CITY OF NEW YORK
C/O Corporation Counsel
100 Church Street
New York, New York 10007

POLICE OFFICER HUTCHINSON
C/O 75th Precinct
1000 Sutter Ave,
Brooklyn, New York 11208

POLICE OFFICER JOHN DOE #1
C/O 75th Precinct
1000 Sutter Ave,
Brooklyn, New York 11208

Plaintiff's residence:

CRAVON BOWDEN
649 Georgia Avenue
Brooklyn, New York 11207

NOTICE: The nature of this action is for violation of constitutional rights, false arrest, unlawful imprisonment, assault, battery, malicious prosecution and other causes of action.

The relief sought is monetary damages in excess of the jurisdictional limits of all lower Courts.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CRAVON BOWDEN,

Index No.:

Plaintiff,

vs.

**VERIFIED
COMPLAINT**

CITY OF NEW YORK, POLICE
OFFICER HUTCHINSON and
POLICE OFFICER JOHN DOE #1,

Defendants.
-----X

Plaintiff complaining of the Defendants by his attorneys, Tumelty & Spier, LLP,
hereby allege, upon information and belief, as follows:

PREAMBLE

1. This is an action to redress the deprivation by the Defendants of the rights secured to the Plaintiff by the Constitution and Laws of the United States and the State of New York.

2. These claims are brought pursuant to Sections 1983 and 1988 of Title 42, United States Code, and other State and Federal Statutes.

3. A valid Notice of Claim for Plaintiff regarding the claims herein was filed with the City of New York on or about July 16, 2015, within ninety (90) days of the accrual of the claim.

4. The Plaintiff appeared and was questioned by representatives of the Defendant City of New York at Hearings pursuant to General Municipal Law section 50-H that was held on August 19, 2015.

5. More than thirty days has elapsed since the filing of the Notices of Claim and the Defendant City of New York has not settled or adjudicated this claim.

6. This action is being commenced within one year and ninety days from the accrual of the action.

THE PARTIES

7. Plaintiff CRAVON BOWDEN was and still is an adult resident of Kings County, City and State of New York (hereinafter "BOWDEN").

8. The Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized under the laws of the State of New York.

9. The Defendant POLICE OFFICER HUTCHINSON, first name currently unknown, assigned to the 75th Precinct (hereinafter "P.O. HUTCHINSON") is an adult resident of the State of New York.

10. At all relevant times hereinafter mentioned, the Defendant P.O. HUTCHINSON was and is an employee of the Defendant CITY OF NEW YORK.

11. That at all times hereinafter mentioned, Defendant P.O. HUTCHINSON was acting within the scope of his employment and in the furtherance of his duties with Defendant CITY OF NEW YORK.

12. Defendant P.O. HUTCHINSON is sued only in his individual capacity.

13. At all times hereinafter mentioned, Defendant P.O. HUTCHINSON was acting under color of law, to wit: the laws of the State of New York and City of New York.

14. The Defendant POLICE OFFICER JOHN DOE #1, a police officer employed by the New York Police Department, name currently unknown (hereafter "P.O. DOE") is an adult resident of the State of New York.

15. That Defendant P.O. DOE, a fictitious name for a person currently unidentified by name, upon information and belief, was assigned to the 75th Police Precinct at all times herein mentioned.

16. At all relevant times Defendant P.O. DOE was employed as a New York City Police Officer and was employed by the City of New York.

17. At all times hereinafter mentioned, Defendant P.O. DOE was acting within the scope of his employment and in the furtherance of his duties with the City of New York.

18. Defendant P.O. DOE is sued only in his individual capacity.

19. At all times hereinafter mentioned, Defendant P.O. DOE was acting under color of law, to wit: The laws of the State of New York and City of New York.

20. At all relevant times Defendant P.O. DOE was working as a partner to Defendant P.O. HUTCHINSON.

21. At all times mentioned in this Complaint, the Defendant P.O. HUTCHINSON acted jointly and in concert with the co-Defendant and other police officers currently unidentified. Defendants had the duty and the opportunity to protect

Plaintiff BOWDEN from the unlawful actions of the other Defendants but each Defendant failed and refused to perform such duty, thereby proximately causing the Plaintiff BOWDEN'S injuries.

**AS AND FOR A FIRST CAUSE OF ACTION FOR UNLAWFUL SEIZURE/
FALSE ARREST / AND FALSE IMPRISONMENT**

22. On May 26, 2012, at approximately 12:30 AM, in the vicinity of 649 Georgia Avenue in Brooklyn, New York, Defendants P.O. HUTCHINSON, P.O. DOE, and other members of the New York City Police Department arrested, detained and seized Plaintiff BOWDEN.

23. Defendant P.O. HUTCHINSON, and other members of the New York City Police Department intended to arrest, detain, and seize the Plaintiff BOWDEN.

24. Defendant P.O. DOE, and other members of the New York City Police Department intended to arrest, detain, and seize the Plaintiff BOWDEN.

25. At the time of the arrest, detention and seizure of the Plaintiff on May 26, 2015, there was no warrant of arrest outstanding for the Plaintiff BOWDEN.

26. The arrest, detention and seizure of Plaintiff by defendant P.O. HUTCHINSON was unlawful.

27. The arrest, detention and seizure of Plaintiff by defendant P.O. DOE was unlawful.

28. There was no probable cause to arrest, detain, or seize the Plaintiff.

29. There was no legal justification or excuse for the arrest, detention or seizure of the Plaintiff.

30. Each defendant knew that there was no probable cause to arrest the Plaintiff.

31. The Plaintiff was aware and conscious of his seizure, confinement, detention, and arrest.

32. The Plaintiff did not consent to the arrest, detention, or seizure of his person by Defendants.

33. The Defendants committed the above acts under color of state law.

34. As the result of the foregoing, Plaintiff feared for his personal safety, was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, and sustained other consequential damages.

35. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR MALICIOUS
PROSECUTION**

36. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

37. On or about May 26, 2015, Defendants P.O. HUTCHINSON and P.O. DOE caused the commencement of criminal proceedings against Plaintiff.

38. In the aforesaid criminal proceedings, defendant P.O. HUTCHINSON, P.O. and DOE, alleged that Plaintiff BOWDEN had committed the offenses of Resisting Arrest,

Disorderly Conduct (fight/violent behavior), Obstruction of Governmental Administration of Justice in the Second Degree, Harassment in the Second Degree, and other charges.

39. Defendant P.O. HUTCHINSON knew that there was no probable cause to believe that Plaintiff was guilty of the offenses charged.

40. Defendant P.O. DOE knew that there was no probable cause to believe that Plaintiffs were guilty of any of the offenses charged.

41. There was no probable cause for the commencement of the criminal proceedings.

42. Defendant P.O. HUTCHINSON acted with malice in commencing that proceeding.

43. Defendant P.O. DOE acted with malice in commencing that proceeding.

44. The criminal charges were prosecuted against Plaintiff from May 27, 2015 through July 28, 2015.

45. On July 28, 2015, the criminal charges brought against Plaintiff BOWDEN were Adjourned in Contemplation of Dismissal (ACD) until January 27, 2016.

46. Plaintiff BOWDEN received a favorable termination of the criminal proceedings.

47. The nature of the termination was sufficient to support cause of action for malicious prosecution.

48. As the result of the foregoing, Plaintiff was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, and other damages.

49. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT

50. Plaintiff repeats the preceding paragraphs as if fully set forth.

51. That during the arrest of Plaintiff, the officers caused Plaintiff to reasonably fear that the Defendants were about to cause a harmful and offensive bodily contact with the person of the Plaintiff.

52. That the Defendants intentionally acted to placed Plaintiff in fear of this harmful and offensive contact.

53. That the Defendants did punch Plaintiff twice in the facial area, forcibly knocked Plaintiff to the broken glass covered ground whereupon Plaintiff sustained cuts to his face and body, did handcuff Plaintiff, and did caused physical contacts to Plaintiff's person.

54. That the acts of the Defendants were not justified.

55. That due to the above acts of the Defendants the Plaintiff sustained damages.

56. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION FOR BATTERY

57. Plaintiff repeats the preceding paragraphs as if fully set forth.

58. That during the arrest of Plaintiff, the officers did cause a harmful and offensive bodily contact with the person of the Plaintiff.

59. That Defendant Hutchinson punched Plaintiff in the Plaintiff's facial area without justifiable reason.

60. That Defendants forcibly knocked Plaintiff to the broken glass covered ground whereupon Plaintiff sustained cuts to his face and body, did handcuff Plaintiff, and did caused physical contacts to Plaintiff's person.

61. That while Plaintiff was thrown into the police vehicle, Defendant P.O. HUTCHINSON punched Plaintiff in the facial area the second time.

62. That at the 75th Precinct during arrest processing the Plaintiff requested medical attention.

63. That the medical attention requested by Plaintiff was unreasonably delayed and inadequate.

64. That the Plaintiff did not consent to the offensive and harmful contacts.

65. That the acts of the Defendants were not justified.

66. That due to the above acts of the Defendants the Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE
DEFENDANTS FOR VIOLATION OF CONSTITUTIONAL RIGHTS § 1983.**

67. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

68. That the above actions by the Defendants violated the rights granted to Plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such Plaintiff seeks relief pursuant to 42 USC § 1983.

69. That due to the above acts of the Defendants the Plaintiff sustained damages.

70. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST THE
DEFENDANTS FOR VIOLATION OF STATE CONSTITUTIONAL RIGHTS**

71. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

72. That the acts of the defendants violated the rights granted to the Plaintiff pursuant to Article 1 § 12 of the New York State Constitution. As such Plaintiff seeks relief pursuant to Brown v. State, 89 NY2d 172 (1996).

73. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST
CITY OF NEW YORK**

74. Plaintiff repeats the preceding paragraphs as if fully set forth.

75. That the City of New York had a formal policy in place regarding the handling of drug arrests by NYPD police officers that was promulgated and adopted.

76. That at the time of the claims herein there was in existence the unlawful practice of arresting persons on less than probable cause by subordinate officials that was so permanent and well settled and pervasive in the New York City Police Department so as to constitute a “custom or usage” which practice is so manifest as to imply the acquiescence of this custom and usage by policy making officials of the Defendant City of New York.

77. That the failure by the Defendant City of New York to properly train and supervise their police officer employees, including these co-Defendants, and the other unidentified police officers involved in Plaintiff’s arrest, amounts to a deliberate indifference to the rights of those with whom the municipalities employees interact.

78. That the co-defendants and other unidentified police officers violated the constitutional rights of the Plaintiff as set forth above and due to the policies and practices of the Defendant City of New York.

79. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

AS AND FOR A EIGHTH CAUSE OF ACTION AGAINST
CITY OF NEW YORK

80. Plaintiff repeats the preceding paragraphs as if fully set forth.

81. That the Defendant City of New York is responsible for the acts of their employees, as set forth above.

82. That the acts of the individual defendants violated the rights granted to the Plaintiffs pursuant to Article 1, §12 of the New York State Constitution. As such, Plaintiff seeks relief pursuant to *Brown v. State*, 89 N.Y.2d 172 (1996).

83. The unlawful acts of the individual Defendants, as set forth above, were permitted, condoned and ratified by the New York City Police Department and said conduct was part of a systemic custom and practice, and occurred due to the negligence and gross negligence of the Defendant City of New York and its agent the New York City Police Department.

84. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

ARTICLE 16 IS INAPPLICABLE TO INSTANT ACTION

85. The provisions of Article 16 to the CPLR of the State of New York do not apply to the instant action.

86. The Defendants acted with intent.

87. The Defendants acted knowingly or intentionally, jointly, in concert, and in a conspiracy to "cover-up" the unlawful acts of the defendants and to otherwise deprive Plaintiff of due process of law, to cause the acts or failures upon which liability is based.

WHEREFORE, Plaintiff demands judgment against the defendants as

follows:

- (i) Compensatory damages in an amount that exceed the jurisdictional limits of all lower courts, and that is just, reasonable, and fair;
- (ii) Punitive damages, against the individual defendants, in an amount that is just, reasonable, and fair;
- (iii) Attorneys' fees and the costs of this action;
- (iv) Such other relief as is fair, just, or equitable.

Dated: New York, New York
August 28, 2015

By: _____

John Tumelty, Esq.

Tumelty & Spier, LLP

Attorneys for Plaintiff

160 Broadway, Suite 708

New York, New York 10038

(212) 566-4681

Fax (212) 566-4749

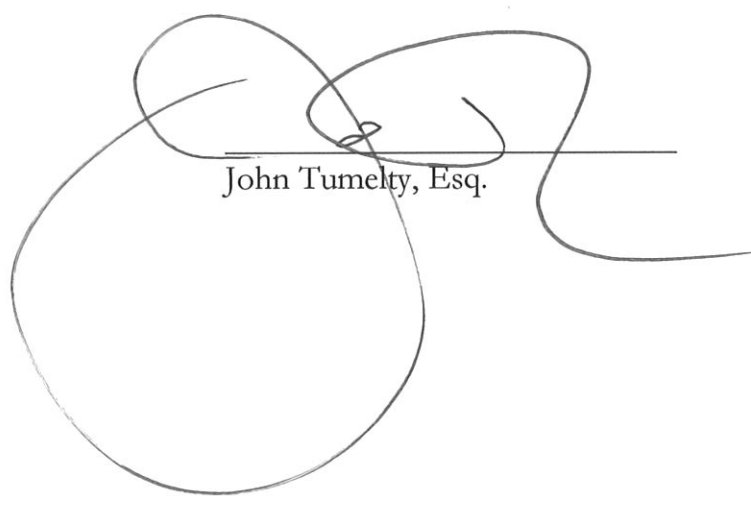
ATTORNEY'S VERIFICATION

JOHN TUMELTY, Esq., an attorney duly admitted to practice in the Courts of the State of New York, affirms that I am the attorney for the Plaintiff herein; I have read the foregoing Complaint and know the contents thereof, the same is true as alleged on information and belief, and as to those matters, I believe them to be true. The reason this verification is made by me and not by the Plaintiff is because the Plaintiff resides outside of the county in which this affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are investigation, interviews, filed documents and the contents of the file maintained by this office

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
August 28, 2015



John Tumelty, Esq.